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DEFENDANTS KRIS LIMLAMAI, RERAIWAN LIMLAMAI, AND PARADEE LIMLAMAI'S DEMURRER TO COMPLAINT

Demurrer filed on May 13, 2026.

MOVING PARTY: Defendants Kris Limlamai, Reraiwan Limlamai, and Paradee Limlamai

RESPONDING PARTY: Plaintiffs Mark Weisberg and Kanyanee Weisberg

NOTICE: OK.

RELIEF REQUESTED: An order sustaining the demurrer to the third through seventh causes of action and the special demurrer for uncertainty without leave to amend.

RULING: Demurrer sustained in part and overruled in part.

BACKGROUND

Mark Weisberg and Kanyanee Weisberg (collectively, Plaintiffs) filed the Complaint on April 13, 2026, asserting seven causes of action. (Compl.) Kris Limlamai and Reraiwan Limlamai (collectively, Tenant Defendants), together with Paradee Limlamai (Paradee) (collectively, Moving Defendants), filed the demurrer on May 13, 2026, with the declaration of Jacob Ilouliann regarding meet and confer efforts. Plaintiffs filed an opposition on July 15, 2026. No timely reply was filled.

LEGAL STANDARD

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

DISCUSSION

Third Cause of Action: Fraud by Concealment

Fraudulent concealment requires concealment or suppression of a material fact, a duty to disclose, intentional concealment or suppression with the intent to defraud, the plaintiff’s lack of knowledge and different conduct had the fact been disclosed, causation, and resulting damage. (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868.) A duty to disclose may arise from a fiduciary relationship, the defendant’s exclusive knowledge of material facts, active concealment of a material fact, or partial representations accompanied by the suppression of other material facts. Outside a fiduciary relationship, the latter three circumstances generally require a transaction or other relationship between the parties. (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336-337.) The requirement to plead “how, when, where, to whom, and by what means” a representation was communicated applies to affirmative misrepresentations and does not apply in the same manner to concealment. (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384.) The complaint as a whole must nevertheless provide sufficient notice of the particular concealment claim. (Jones v. ConocoPhillips (2011) 198 Cal.App.4th 1187, 1200.)

Here, Plaintiffs identify the concealed material facts as “the true identities of persons residing at the premises, the duration and overlap of their occupancy, the monies collected from such persons, the actual use of rooms and common areas for sleeping and rent generation, and the use of paperwork and communications to conceal these facts.” (Compl. ¶ 58.) As to Tenant Defendants, Plaintiffs allege a disclosure duty arising from their lease with Plaintiffs, their exclusive knowledge of the actual occupancy and payments, their active concealment through misleading applications and addenda, and their misleading partial representations. (Compl. ¶¶ 16, 21, 29, 32-36, 59.) Plaintiffs allege that Tenant Defendants intentionally concealed the facts to continue the tenancy, collect money from unauthorized occupants, avoid landlord scrutiny, and retain the resulting economic benefits. (Compl. ¶¶ 60-61.) Plaintiffs further allege that they were unaware of the facts, would have acted differently had they known the truth, continued the tenancy in reliance on the concealment, and suffered resulting damage. (Compl. ¶¶ 62-64.) Read as a whole, these allegations plead each element and give Tenant Defendants sufficient notice of the concealment claim.

As to Paradee, Plaintiffs acknowledge that “the current pleading does not identify Paradee’s own communication or concealment act, or the transaction, agency relationship, or other facts creating her disclosure duty, with the same precision alleged against Kris and Reraiwan.” (Opp. 8:2-6.) Plaintiffs contend they “can amend to identify Paradee’s specific act and the transactional or agency basis for her duty.” (Ibid.)

The demurrer to the third cause of action is overruled as to Tenant Defendants and sustained with leave to amend as to Paradee.

Fourth Cause of Action: Money Had and Received

A claim for money had and received requires that the defendant be indebted to the plaintiff in a certain sum for money received by the defendant for the plaintiff’s use. (Farmers Ins. Exchange v. Zerin (1997) 53 Cal.App.4th 445, 460; First Interstate Bank v. State of Cal. (1987) 197 Cal.App.3d 627, 635.) The plaintiff must allege a promise to pay or facts implying such a promise. (Vaughn v. Certified Life Ins. Co. (1965) 238 Cal.App.2d 177, 181.)

Here, Plaintiffs allege that Moving Defendants "became indebted to Plaintiffs for money had and received by Defendants for the use and benefit of Plaintiffs." (Compl. ¶ 66.) Plaintiffs allege that Defendants received payments from unauthorized occupants in exchange for use of Plaintiffs' property and are obligated in equity to remit those funds. (Compl. ¶¶ 67-68.) The incorporated allegations, however, identify rent paid to the Tenant Defendants for unauthorized occupancy. (Compl. ¶¶ 24, 29.) Plaintiffs do not allege facts showing that the payments belonged to Plaintiffs, were received on their behalf, or were subject to a contractual or equitable obligation requiring remittance. Plaintiffs also seek an amount according to proof rather than alleging a certain sum. (Compl. ¶ 70.)

Plaintiffs acknowledge that "[u]nauthorized subrent does not automatically become a landlord's property" and that the request for an amount according to proof "may not track the stated-amount formulation." (Opp. 9:7-13.) Plaintiffs state that they can amend to identify "the precise lease-based or equitable basis for recovery, the recipient of each known payment, and a minimum amount derived from the identified payment periods." (Opp. 9:18-20.)

The demurrer to the fourth cause of action is sustained with leave to amend.

Fifth Cause of Action: Waste

Code of Civil Procedure section 732 authorizes an aggrieved person to bring an action against a tenant who commits waste. Waste requires injury to the inheritance, generally shown by conduct that causes the property's market value to be "substantially or permanently diminished or depreciated." (Smith v. Cap Concrete, Inc. (1982) 133 Cal.App.3d 769, 775-778; Rowe v. Wells Fargo Realty Services, Inc. (1985) 166 Cal.App.3d 310, 319-320.) Temporary damage that does not satisfy that standard is insufficient. (Rowe, supra, 166 Cal.App.3d at pp. 319-320.)

Here, Plaintiffs allege that Moving Defendants over-occupied the premises, used bedrooms and non-bedroom areas inconsistently with the property's design, subjected the premises to excessive turnover and use, and caused "damage and deterioration beyond ordinary wear and tear." (Compl. ¶ 73.) Plaintiffs further allege that the sleeping arrangements, unauthorized occupancy, boarding arrangement, and misuse of systems, fixtures, and interior spaces caused "physical injury and excessive deterioration to the premises." (Compl. ¶ 74.) Plaintiffs do not identify any particular permanent condition or allege facts showing that Moving Defendants' conduct substantially or permanently diminished the property's market value. Paragraph 72 alleges only a duty not to cause injury to the inheritance or Plaintiffs' reversionary interest.

Plaintiffs acknowledge that the allegations "do not, however, identify a particular permanently damaged system or fixture, an unrepairable condition, or a specific substantial and permanent reduction in utility or market value." (Opp. 10:10-13.) Plaintiffs state that they can amend to allege "the specific damaged conditions and components; approximate dates and responsible occupants; whether repair, replacement, or remediation is required; the effect on utility and market value; and each Defendant's possessory role or contribution." (Opp. 10:23-26.) Plaintiffs also state that they can clarify "Paradee's possessory status, duration of control, duty, and connection to particular conditions." (Opp. 10:26-28.)

The demurrer to the fifth cause of action is sustained with leave to amend.

Sixth Cause of Action: Private Nuisance

Private nuisance requires interference with the plaintiff's use and enjoyment of property, substantial actual damage, and interference that is unreasonable in its nature, duration, or amount. (Today's IV v. Los Angeles County Metropolitan Transportation Authority (2022) 83 Cal.App.5th 1137, 1176; San Diego Gas & Electric Co. v. Superior Court (1996) 13 Cal.4th 893, 938; Civ. Code, § 3479.)

Here, Plaintiffs allege that Moving Defendants "created, assisted in creating, maintained, or permitted conditions and conduct on the premises" that substantially and unreasonably interfered with Plaintiffs' free use and enjoyment of the property.

(Compl. ¶ 77.) Plaintiffs identify repeated unauthorized occupancy, non-permitted and income-producing use, sleeping and subletting in rooms and common areas, and resulting overburdening and misuse of the property. (Compl. ¶ 78.) Plaintiffs allege that the conduct caused deterioration and damage and that the interference undermined their control of the property, exposed the premises to excessive wear and damage, and transformed the residence into an undisclosed multi-occupant subletting operation. (Compl. ¶¶ 40, 79-80.) These allegations plead interference, substantial actual damage, and unreasonableness.

Moving Defendants' contention that Plaintiffs must allege interference with neighboring properties or public rights applies public-nuisance concepts to a private-nuisance claim. Separately, the factual overlap with Plaintiffs' contract claims does not defeat the nuisance claim because Plaintiffs may plead alternative legal theories where each is independently tenable. (Crowley v. Katleman (1994) 8 Cal.4th 666, 690-691.)

The demurrer to the sixth cause of action is overruled.

Seventh Cause of Action: Accounting

An accounting requires a relationship between the parties that calls for an accounting and a balance due that can only be ascertained through an accounting. (Teselle v. McLoughlin (2009) 173 Cal.App.4th 156, 179.) A fiduciary relationship is not required. (Ibid.) The right to an accounting is derivative and must rest on an underlying claim establishing that money is owed. (Janis v. Cal. State Lottery Com. (1998) 68 Cal.App.4th 824, 833-834.)

Here, Plaintiffs allege that Moving Defendants "received money from unauthorized occupants and from use of the premises in amounts not fully known to Plaintiffs." (Compl. ¶ 82.) Plaintiffs allege that "[t]he precise amounts received, the dates of receipt, the identities of all payors, and the disposition of those funds are matters uniquely within Defendants' knowledge and possession." (Compl. ¶ 83.) Plaintiffs allege that "[a] balance is due from Defendants to Plaintiffs, but the amount cannot be ascertained without an accounting." (Compl. ¶ 84.) These allegations explain why the amount is unascertained, but they do not establish an underlying right to the subrent proceeds. As discussed regarding the fourth cause of action, Plaintiffs do not allege facts showing that those proceeds belonged to them or were subject to a contractual or equitable obligation requiring remittance.

Plaintiffs acknowledge that the allegations "do not independently establish that the proceeds are legally due to Plaintiffs" and that, if the underlying obligation is insufficiently pleaded, "the accounting claim should be sustained only with leave to amend in tandem with that obligation." (Opp. 12:14-22.) Plaintiffs state that they can amend to allege "the viable underlying obligation and account records needed to determine the balance." (Opp. 13:18-25.)

The demurrer to the seventh cause of action is sustained with leave to amend.

Uncertainty

A special demurrer for uncertainty lies only where the pleading is so uncertain that the defendant cannot reasonably determine what issues must be admitted or denied. (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

Here, Plaintiffs identify Tenant Defendants as the lessees, Paradee as an alleged occupant, the property, the alleged occupancy arrangement, and the conduct underlying each challenged cause of action. Although Plaintiffs use collective allegations, Moving Defendants separately address each challenged claim and can reasonably determine what allegations they must admit or deny. The pleading deficiencies identified above do not render the Complaint unintelligible.

The special demurrer for uncertainty is overruled.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037.) The burden is on the complainant to show that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Here, this is the first challenge to the original Complaint. For the reasons stated above, Plaintiffs have shown a reasonable possibility of curing each defect for which the demurrer is sustained.

CONCLUSION

The demurrer to the third cause of action is overruled as to Tenant Defendants and sustained with leave to amend as to Paradee.

The demurrer to the fourth, fifth, and seventh causes of action is sustained with leave to amend as to Moving Defendants.

The demurrer to the sixth cause of action is overruled. The special demurrer for uncertainty is overruled.

Plaintiffs shall file and serve any amended complaint within 20 days.